NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(Video Conference)

PRESENT: JUSTICE TELAPROLU RAJANI – MEMBER JUDICIAL

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING HELD ON 14.12.2021 AT 10.30 AM

TC/CP. Nos.	CA/IA No.	Section/ Rule	Name of Parties
CP(CAA)/2/230/AMR/2021	IA(Companies act)/7/2021	230	Srikalahasthi Pipes Ltd (Transferor Co.) & Electrostell Castings Ltd (Transferee Co.)

s

Counsel for Petitioner(s):

Ries

Name of the Counsel(s)	Designation	E-mail & Telephone No.	Signature

Counsel for Respondent(s):

Ries

Name of the Counsel(s)	Designation	E-mail & Telephone No.	Signature

ORDER

IA(Companies act)/7/2021 is allowed, vide separate orders.

JUSTICE TELAPROLU RAJANI
MEMBER JUDICIAL

NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH

I.A (Companies Act) No.7 of 2021
IN
CP (CAA) No.2/230/AMR/2021

Rule 11 of the National Company Law Tribunal Rules, 2016 Read with Section 230 to 232 of the Companies Act, 2013

In the matter of
M/s. SRIKALAHASTHI PIPES LIMITED

BETWEEN:

Srikalahasthi Pipes Limited
(CIN: L74999AP1991PLC013391),
Registered Office at Rachagunneri Village,
Srikalahasthi Mandal, Chittoor District,
Andhra Pradesh – 517641.

.... Applicant

Orders pronounced on: 14.12.2021

***Coram*:**

Justice Telaprolu Rajani, Member Judicial.

Parties/Counsels present:

For the Applicant : Mr. D.N.Sharma & Mr.Trivikram Khaitan, Advocates

ORDER

1. This application is filed seeking for a modification of the orders passed by this Tribunal in CP(CAA) No.02/230/AMR/2021 on 22.11.2021. The modification sought for is with regard to the leave being granted to the applicant company to file its schedule of assets to be transferred to the Transferee Company under the CA.
2. Heard the Counsel. The ground on which the modification is sought for is that as per Form No. CAA 7 of Companies

(Compromises, Arrangements and Amalgamation) Rules, 2016 Read with Section 232 of Companies Act, 2013 and Rule 20 of the said Rules, the schedule of assets of the Transferor Company is required to form part and parcel of the certified copy of the order to be issued by the Registry. The said prayer is made in the company application but the order did not include the said prayer and the consequent relief.

3. The contention of the Counsel is that the Registrar is not sanctioning the scheme without the schedule of assets being filed. Hence, accepting the said difficulty put forth by the petitioner's counsel there shall be an order that the schedule of assets of the transferor company Annexure "SA-4" to be taken on record and leave is granted to the applicant company to file its schedule of assets to be transferred to the Transferee Company under the scheme and leave is granted to the petitioner to file the certified copy pertaining to the amended order and the schedule of the assets appended there to at the portal of the Ministry of Corporate Affairs in Form. INC28 within a period of 4 weeks from the date of receipt of the certified copy of this order. The order stands modified accordingly.

4. Rest of the contents of the order dated 22.11.2021 remain the same. This amendment order to be read along with the original Order

Accordingly, I.A (Companies Act).No.7/2021 in CP (CAA) No.2/230/AMR/2021 is disposed of.

JUSTICE TELAPROLU RAJANI
MEMBER JUDICIAL

Swamy Naidu